



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 10190 (EXTENSION)
ORIGINAL March 1, 1990

400 Seventh Street, S.W.
Washington, D.C. 20590

10190

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10190 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 17 1998

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

August 18, 1995



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DOT-E 10190

1. The U.S. Department of Defense (DOD), Washington, D.C., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations for the transportation of a flammable solid in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of lithium sulfur dioxide batteries in non-DOT specification containers, and provides no relief from any regulation other than as specifically provided

2. BASIS. This exemption is based on an application from the Department of Defense dated May 12, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Lithium battery, classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Lithium battery.

5. REGULATION AFFECTED. 49 CFR 172.101, 173.1015, 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft and cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Package consist of not more than four lithium sulfur dioxide batteries, cushioned in vermiculite, in a United States Navy 40 mm ammo can (Military Specification MIL-D-18876, Revision B). In addition, Calgon Corporation's "ASC Carbon," in sufficient quantities, must be placed within the packaging to absorb any sulfur dioxide gas which may be emitted from the batteries.

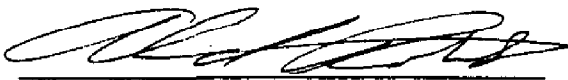
8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. This exemption applies only to emergency movements during a declared National Emergency or, during contingencies, expedited movement of U.S. forces as approved by the Secretary of Defense.
- c. The Exemptions Branch, Office of Hazardous Materials Transportation, must be notified before any shipment is made under this exemption.
- d. A copy of this exemption must be carried aboard each aircraft, motor vehicle, and vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. September 30, 1991.

Issued at Washington, D.C.



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 1 1990

(DATE)

Address all inquires to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA.